FILED
AUG 07 2026
By: DEPUTY

**RESOLUTION NO. 2026-72**

**A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF SANGER, CALIFORNIA, CALLING AND GIVING NOTICE OF THE HOLDING OF A GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026, FOR THE SUBMISSION TO THE QUALIFIED VOTERS OF THE CITY OF A PROPOSED ORDINANCE AMENDING AND RESTATING ARTICLE V OF CHAPTER 66 OF THE SANGER MUNICIPAL CODE RELATING TO THE TRANSIENT OCCUPANCY TAX, INCREASING THE RATE FROM FOUR PERCENT (4%) TO TWELVE PERCENT (12%), UPDATING THE TAX TO APPLY TO SHORT-TERM RENTALS, AND IMPLEMENTING SHORT-TERM RENTAL FACILITATOR COLLECTION AND REPORTING REQUIREMENTS; REQUESTING CONSOLIDATION WITH THE STATEWIDE GENERAL ELECTION; AND DIRECTING RELATED ELECTION ACTIONS**

**WHEREAS,** the City of Sanger currently imposes a transient occupancy tax pursuant to Article V of Chapter 66 of the Sanger Municipal Code;

**WHEREAS,** Revenue and Taxation Code section 7280 authorizes the legislative body of a city to levy a tax upon the privilege of occupying a room or rooms, or other living space, in a hotel, inn, tourist home or house, motel, or other lodging, unless the occupancy is for a period of more than thirty (30) days;

**WHEREAS,** Article XIII C of the California Constitution requires voter approval before a local government may impose, extend, or increase a general tax;

**WHEREAS,** the City Council desires to submit to the qualified voters of the City a proposed ordinance amending and restating Article V of Chapter 66 of the Sanger Municipal Code to increase the transient occupancy tax rate by eight percentage points, from four percent (4%) to twelve percent (12%), and to modernize the City's transient occupancy tax provisions;

**WHEREAS**, the proposed ordinance would expressly apply the City's transient occupancy tax to short-term rentals and similar transient lodging accommodations, including accommodations booked through online platforms such as Airbnb and VRBO;

**WHEREAS,** Government Code section 50990 et seq., including the Short-Term Rental Facilitator Act of 2025, authorizes local agencies to adopt ordinances requiring short-term rental facilitators to provide reports, collect and remit applicable transient occupancy taxes, and comply with related local tax administration requirements to the extent permitted by law;

**WHEREAS,** Business and Professions Code sections 17568.6 and 17568.8 regulate certain short-term lodging pricing and cleaning-fee disclosures under state law, and the proposed ordinance preserves the City's ability to administer its transient occupancy tax consistently with applicable state law without changing the voter-approved tax rate or expanding the tax beyond the terms adopted by the voters;

**WHEREAS,** the revenues generated by the proposed transient occupancy tax would be deposited in the City's General Fund and would be available for any lawful municipal purpose, including but not limited to public safety, streets, parks, recreation, code enforcement, and other general City services;

**WHEREAS,** because the proposed tax revenues would be available for general municipal purposes and would not be legally restricted to any specific purpose, the measure is a general tax measure requiring approval by a majority of the voters voting on the measure;

**WHEREAS**, Elections Code section 9222 authorizes the City Council to submit to the voters, without a petition, a proposition for the enactment of an ordinance at a regular or special city election;

**WHEREAS,** Government Code section 53724 provides that a tax subject to voter approval may be proposed by ordinance or resolution of the legislative body;

**WHEREAS**, a statewide general election will be held on Tuesday, November 3, 2026, and the City Council desires to consolidate the election on the proposed measure with that election pursuant to Elections Code sections 10400, 10403, and 10418;

**WHEREAS,** Elections Code section 10403 requires the City to file with the Fresno County Board of Supervisors, and a copy with the Fresno County Clerk/Registrar of Voters, a resolution requesting consolidation at least eighty-eight (88) days before the election;

**WHEREAS,** the City Council desires to request that the Fresno County Board of Supervisors consolidate the City's election on the measure with the statewide general election to be held on November 3, 2026, and that the Fresno County Clerk/Registrar of Voters conduct all necessary election services for the measure;

**WHEREAS,** the City Council desires to provide for the filing of written arguments and rebuttal arguments regarding the measure in accordance with Elections Code sections 9282 and 9285;

**WHEREAS,** the City Council desires to direct the City Attorney to prepare an impartial analysis of the measure pursuant to Elections Code section 9280;

**WHEREAS,** the City Council has determined that the actions taken by this Resolution are not a project under the California Environmental Quality Act because they involve the submission of a tax measure to the voters and do not commit the City to any specific project that may result in a direct or reasonably foreseeable indirect physical change in the environment;

**NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF SANGER DOES RESOLVE, DECLARE, DETERMINE, AND ORDER AS FOLLOWS:**

**SECTION 1. Recitals.**

The foregoing recitals are true and correct and are incorporated herein by this reference.

**SECTION 2. Calling of Election.**

Pursuant to Elections Code section 9222, Government Code section 53724, Revenue and Taxation Code section 7280, Article XIII C of the California Constitution, and all other applicable law, the City Council hereby calls and orders a General Municipal Election to be held in the City of Sanger on Tuesday, November 3, 2026, for the purpose of submitting to the qualified voters of the City the ordinance attached hereto as Exhibit A and incorporated herein by this reference.

**SECTION 3. Submission of Ordinance to Voters.**

The City Council hereby orders submitted to the qualified voters of the City the proposed ordinance entitled "An Ordinance of the People of the City of Sanger, California, Amending and Restating Article V of Chapter 66 of the Sanger Municipal Code Relating to the Transient Occupancy Tax, Increasing the Transient Occupancy Tax Rate from Four Percent (4%) to Twelve Percent (12%), Expressly Applying the Tax to Short-Term Rentals and Similar Transient Lodging,

and Implementing Short-Term Rental Facilitator Reporting and Collection Requirements Pursuant to Government Code Section 50990 et seq."

**SECTION 4. Ballot Question.**

The exact form of the question to be submitted to the voters shall be as follows:

| | | |
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| **MEASURE ___** | Shall the measure increasing the City of Sanger transient occupancy tax on hotel, motel, short-term rental, and similar lodging guests staying 30 days or less, generally not paid by Sanger residents, to 12%, until ended by voters, providing approximately $55,037 annually for general City services and deposited into the City's general fund, be adopted? | **YES** |
| | | **NO** |

**SECTION 5. Passage of Measure.**

The measure shall be deemed approved if it receives the affirmative vote of a majority of the voters voting on the measure. If approved by the voters, the ordinance shall be enacted in accordance with applicable law and shall take effect as provided therein.

**SECTION 6. General Tax.**

The measure is submitted as a general tax measure. Revenues from the tax shall be deposited in the City's General Fund and may be used for any lawful municipal purpose. The measure does not legally restrict the use of revenues to any specific purpose.

**SECTION 7. Consolidation with Statewide General Election.**

Pursuant to Elections Code sections 10400, 10403, and 10418, the City Council hereby requests that the Fresno County Board of Supervisors consolidate the General Municipal Election called by this Resolution with the statewide general election to be held on Tuesday, November 3, 2026. The City Council further requests that the election on the measure be held in all respects as if there were only one election, and that the Fresno County Clerk/Registrar of Voters canvass the returns and certify the results to the City Council. The City Council hereby specifically acknowledges that the election will be held and conducted per Elections Code 10418.

**SECTION 8. Services of County Elections Official.**

The City Council hereby requests that the Fresno County Clerk/Registrar of Voters provide all services necessary to conduct the election on the measure, including but not limited to publication of notices to the extent required or customary, preparation and mailing of voter information materials, printing of ballots, furnishing vote centers and election officers, tabulation of ballots, canvass of returns, and all other election services necessary or appropriate for the conduct of the consolidated election.

**SECTION 9. Filing of Resolution.**

The City Clerk is hereby directed to file a certified copy of this Resolution with the Fresno County Board of Supervisors and to file a copy with the Fresno County Clerk/Registrar of Voters in accordance with Elections Code section 10403 and all applicable Fresno County election deadlines.

**SECTION 10. Voter Information Guide; Full Text of Ordinance.**

The City Clerk is authorized and directed to transmit the full text of the ordinance attached as Exhibit A, together with this Resolution and all other required materials, to the Fresno County Clerk/Registrar of Voters for printing in the voter information guide or otherwise making the ordinance available to voters in the manner required by law and the procedures of the Fresno County Clerk/Registrar of Voters and the law.

**SECTION 11. Impartial Analysis.**

Pursuant to Elections Code section 9280, the City Council directs the City Clerk to transmit a copy of the measure to the City Attorney. The City Attorney is hereby directed to prepare an impartial analysis of the measure, not to exceed five hundred (500) words, showing the effect of the measure on existing law and the operation of the measure. The City Attorney shall transmit the impartial analysis to the City Clerk for submission to the Fresno County Clerk/Registrar of Voters in accordance with applicable law and established election deadlines.

**SECTION 12. Arguments.**

Pursuant to Elections Code, written arguments in favor of or against the measure may be submitted in accordance with the procedures and deadlines established by the Fresno County Clerk/Registrar of Voters. Arguments shall not exceed three hundred (300) words. The City Council authorizes, but does not require, one or more members of the City Council to submit an argument in favor of the measure on behalf of the City Council, or to join with other eligible signers in submitting such an argument.

**SECTION 13. Rebuttal Arguments.**

Pursuant to Elections Code rebuttal arguments for the measure, if provided for by the Fresno County Clerk/Registrar of Voters, shall not exceed two hundred fifty (250) words and shall be filed in accordance with the procedures and deadlines established by the Fresno County Clerk/Registrar of Voters.

**SECTION 14. Public Examination.**

The City Clerk is authorized and directed to make the measure, impartial analysis, arguments, rebuttal arguments, and other election materials available for public examination in the manner and for the time period required by the Elections Code.

**SECTION 15. Costs of Election.**

The City recognizes that it will be responsible for its proportionate share of the costs of the consolidated election attributable to the measure. The City Council authorizes the City Manager, or designee, to pay such costs from available City funds upon receipt of billing from the County.

**SECTION 16. Authority to Make Non-Substantive Changes.**

The City Manager, City Attorney, City Clerk, and their respective designees are authorized to make non-substantive changes to the ballot question, ordinance title, and election materials as may be required by the Fresno County Clerk/Registrar of Voters or as may be necessary to conform to the Elections Code, provided that such changes do not alter the substantive meaning or effect of the measure.

**SECTION 17. CEQA.**

The City Council finds that this Resolution and the submission of the measure to the voters are not a project under the California Environmental Quality Act pursuant to State CEQA Guidelines sections 15060(c)(2), 15060(c)(3), and 15378 because the Resolution and election proceedings do not have the potential to result in a direct or reasonably foreseeable indirect physical change in the environment. The proposed ordinance also concerns government fiscal activity and tax administration and does not commit the City to any specific project.

**SECTION 18. Severability.**

If any section, subsection, sentence, clause, phrase, or portion of this Resolution is for any reason held to be invalid or unconstitutional by a final decision of a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Resolution.

**SECTION 19. Effective Date.**

This Resolution shall take effect immediately upon its adoption.

PASSED, APPROVED AND ADOPTED by the City Council of the City of Sanger at a regular meeting held on the 6th day of August 2026, by the following vote:

| | |
|---|---|
| AYES: | GONZALEZ, MARTINEZ, MONTELONGO, MELENDEZ |
| NOES: | HURTADO |
| ABSTAIN: | NONE |
| ABSENT: | NONE |

ATTEST:

Lina Martinez, City Clerk

ATTEST:

Frank Gonzalez, Mayor

**APPROVED AS TO FORM:**

City Attorney

# EXHIBIT A

# ORDINANCE SUBMITTED TO THE VOTERS

## ORDINANCE NO. 2026-06